



April 8, 2026

Nicholas P. Laurent
laurent@barronadler.com
Office: (512) 478-4995

Via Interchange Filer & CMRRR
Public Utility Commission of Texas
William B Travis Building
1701 N. Congress Avenue, Suite 7-110
Austin, Texas 78701

Re: Control No. 59336; Comments in Opposition to **Howard-Solstice Transmission Line Project Segments 47, 48, & 51** (the "Project")

Dear Chairman Gleeson and Commissioners:

On behalf of my client Martin Marietta Materials, Inc. and its subsidiaries (collectively "Martin Marietta"), I write to highlight the potential impact of the Project on Martin Marietta's Medina Rock and Rail quarry (the "Facility"). Specifically, Martin Marietta objects to Project Route Segments 47, 48, and 51, which would significantly impact Martin Marietta's property rights in the Facility, as well as result in substantial economic damages.

Introduction

Martin Marietta opened the Facility, a limestone rock quarry, in January 2016 to provide much needed construction aggregates, *i.e.* sand and gravel, for the Central Texas area, as well as throughout the state via the Facility's direct rail connection. The Facility's quarry covers approximately 4,600 acres in Hondo, Texas, approximately forty miles west of San Antonio. The Facility is uniquely serviced by a private, 57,300 foot Union Pacific rail spur. As of its opening, the Facility was Martin Marietta's largest capital investment to date, at \$158 million.

Construction aggregate is the backbone of all large construction projects; there is no substitute for it. Roads, parking lots, foundations and other paving projects typically begin with base aggregate. Asphalt and concrete follow and are roughly 90% construction aggregate by weight. Public infrastructure projects are among the largest consumers of construction aggregates. Central and South Texas are not blessed with an aggregate supply sufficient to meet current construction needs, so aggregate has for years been barged into ports along the Gulf to build public and private infrastructure.

The Facility is an important part of supplying the construction aggregate needed in Central and South Texas. Because aggregate is expensive to transport, it is not feasible to supply those

areas by truck. The Facility's rail spur, however, allows millions of tons of material to be shipped to high demand areas like Houston and Corpus Christi.

It is thus very much in the public interest to minimize impacts on the Facility. Anything that reduces the Facility's life or increases its costs will have a direct impact on the cost of public and private construction.

Martin Marietta thus respectfully requests that the Project's routing avoid Segments 47, 48, and 51. Segment 51 of the Project's proposed route would sever an active mine. In particular, Segment 51 will have significant operational and financial impacts on Martin Marietta and its Facility, as well as impacts to the public due to premature closing of a vital source of construction materials.

Segment 51

Segment 51, which is a part of alternative routes 26, 27, 30, 31, 32, 39, 40, 45, 56, 57, 58, 59, 60, 62, 64, 65, 66, 67, 68, 69, 70, 71, 72, 73, 74, 76, and 77, is particularly harmful to Martin Marietta. This segment crosses and alienates a significant portion of Martin Marietta's aggregate reserves in the quarry. Martin Marietta would potentially be deprived of the long-term resource base necessary to sustain quarry operations. In short, Segment 51 would prevent Martin Marietta from fully capitalizing on the existing materials in its quarry, shortening the Facility's anticipated operational life. In the event of a future eminent domain proceeding, Martin Marietta would likely seek very significant damages not only for the footprint of the transmission line, but also for the loss of access to its designated reserves in the quarry, which will no longer be recoverable.

Segment 51 of the Project would have significant economic impacts not just on Martin Marietta, but also the construction industry at large, as millions of tons of material needed to build projects would be lost. A reduction in the supply of construction materials will inevitably cause higher prices for private development and public infrastructure.

The Facility is also a major employer in the area, and the closure of the quarry would cause a loss of jobs and would reduce ad valorem tax contributions to the community.

Segments 47 & 48

Segments 47 and 48, which are a part of alternative routes 18, 25, and 55, also are undesirable. Although these routes do follow the existing rail spur that serves the Facility, the rail spur will likely be retired at the end of the quarry's life. Then, the transmission lines will be left traversing and bisecting tracts that otherwise could be utilized for agricultural operations or other development. Thus, following the rail spur will not necessarily minimize impacts on



April 8, 2026

Page 3

surrounding properties in the long term. As with Segment 51, reasonable alternative routes exist that would avoid active and future mining reserves.

Conclusion

Martin Marietta lodges its official objection and opposition to proposed transmission line routes 18, 25, 26, 27, 30, 31, 32, 39, 40, 45, 55, 56, 57, 58, 59, 60, 62, 64, 65, 66, 67, 68, 69, 70, 71, 72, 73, 74, 76, and 77. As Martin Marietta has previously asserted to CPS and AEP, elimination of Segments 48 and 51 from consideration and a more strategic alignment of Segment 47 would minimize interference with the Facility and its mineral reserves. Martin Marietta urges this Commission, as well as CPS and AEP, to consider the significant impacts to the Facility and its reserves, which weigh heavily against any route including Segments 47, 48, and 51.

Very truly yours,



Nicholas P. Laurent

Encl.

CC: Client
Blair Knox (*firm*)

